

## **Claro NZ Credit, Consignment product supply agreement for commercial operators.**

This Agreement (below) is Between Claro NZ and the below-named Retailer. By signing this agreement provided by Claro NZ the Retailer agrees to the terms and conditions contained within.

Business name, address and contact Tel no's)

Pak n save botany  
501 to rakau drive  
Botany  
09 263 6888

### **No outlay, No Dead Stock, and No Risk**

Market leaders, Satisfying customer demand.  
We provide both the products and the display stands.  
We guarantee all our products against defects.  
We're invested in making this a success for you.  
Easy to work with standard T&Cs ([see Here](#)).  
No long-term tie-in contract! End at any time.

### **DEFINITIONS**

*Agreement: Is this credit account and Consignment Agreement*

*Goods: Are goods ordered by or supplied to the Retailer by Claro NZ*

*Premises: Is the retailers' business address where goods are held.*

*Sold Goods: Are goods sold or goods in a non-merchantable condition.*

*Online Account: retailers account at [www.claronz.com](http://www.claronz.com)*

*Non Merchantable: Are goods damaged or soiled whilst held be the retailer*

### **The Install**

Claro NZ offers/will deliver and install a consignment of goods within two weeks of the retailer signing this agreement. As part of consignment management Claro NZ will provide the retailer with access to an online account where all goods supplied under this agreement and their restocking is manageable between parties.

The Retailer shall solely utilize their Claro NZ online account to record all Sold consignment Goods within a period of not greater than by the 15<sup>th</sup> of each calendar month or at any other time the retailer wishes to top up their goods.

### **Goods being replenished when sold**

Where goods are delivered to the premises. The Retailer shall be deemed to have received and accepted the goods invoiced if, within 24 hours of their receipt, no notification of deficit or damage has been reported to Claro NZ.

Upon receipt of delivered goods, The Retailer accepts full liability for them whilst in their possession.

The retailer's liability for the value of the goods to Claro NZ exists until such time as the retailer pays for them or returns them to Claro NZ in a merchantable condition.

The retailer gives Claro NZ and its agents the right to enter the premises during normal working hours without notice for the purpose of inspection, stock checking or removal of the Goods.

### **Stock checks**

From time to time Claro NZ and/or its agent(s) may attend the premises for the purpose of stock checking this will be during normal working hours and may be without prior notice. The Retailer shall provide all reasonable access for Claro NZ and/or its agent(s) to access the stock for this purpose.

Where goods are found to be absent or sold Claro NZ will issue an invoice to the Retailer to the value of all Goods Sold since the date of the last stock check/invoice, plus all applicable delivery costs for their replenishment into the retailers' consignment stock.

All invoices issued to the retailer for goods sold are to be paid in full by the 20<sup>th</sup> of the following month.

### **Payments for sold goods**

Where the Retailer is in breach or default of this Agreement E.G by not clearing any due payments. Claro NZ at its sole

discretion may appoint agents to act on its behalf for the purpose of recovering any amounts owing or repossessing its goods. Any costs or expenses associated with such actions are recoverable from the retailer in addition to any other amounts owing.

Where payments of invoices are overdue Claro NZ may without notice to the retailer charge/add interest at 10% per annum on overdue funds.

#### **Warranties we offer**

Claro NZ will reimburse the retailer for any faulty product returned to the retailer for a refund. All warranty claims must be accompanied by the original customer purchase invoice, fault description, and the purchasing customer's contact details.

#### **Ending this agreement**

Either the Retailer or Claro NZ may end this Agreement by giving the other party ten working days written notice or earlier by Agreement between parties. Where notice is given Claro NZ will attend the premises for the purpose of final stock check removal of their goods from the premises and issue of a final invoice where applicable.

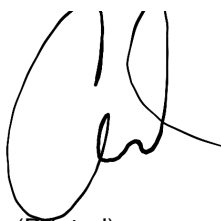
#### **Miscellaneous**

Notices will be sufficiently given if posted or successfully transmitted by email to the intended recipient, Claro NZ is sales@nzboxer.com, and the Retailer email is used to access their online account. Claro NZ will be under no liability whatsoever to the retailer. Online account information is held for the duration of this agreement and only for purposes related to the Retailer's dealings with Claro NZ. If in default of this agreement then all moneys owed become immediately payable. This Agreement commences on the date of the retailers' signature acknowledgment of its terms.

#### **Cooling off**

Decided it's not for you! No problem the retailer hereby reserves the right without reason to cancel or stop this agreement for up to seven days from the commencement date (call 079497730).

The below signatory confirms they have fully read and understand their obligations and agreement to this Consignment goods supply agreement.



Full Name (Printed)

Calum.rob

Date: August 16, 2023

Time: 15:03